

12. 9:00 AM CASE NUMBER: C25-03644
CASE NAME: RENITA WILSON VS. RICHMOND HOUSING AUTHORITY
*HEARING ON MOTION IN RE: JUDICIAL PREFERENCE
FILED BY: WILSON, RENITA
TENTATIVE RULING:

Case is settled and motion was withdrawn by the moving party.

13. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Hearing **continued** by the Court to August 14, 2026 in Department 32.

14. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: PAULK, TYISHA
TENTATIVE RULING:

This is a collection action. Plaintiff filed a complaint against Defendant on May 7, 2024 and default judgment was entered on February 5, 2025. Defendant filed the instant motion to set aside default and default judgment on February 27, 2026. Defendant argues that she was never served with the complaint and the default and default judgment are void as a result.

There was no timely opposition filed to the motion to set aside default, and accordingly, Plaintiff is deemed to have conceded Defendant's arguments. (The Court notes that a late opposition was submitted, though it is not clear that it was served on Plaintiff.) The failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue.”); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 (“failure to address the threshold question...effectively concedes that issue and renders its remaining arguments moot”); *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).)